

SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Yahya Afridi, CJ
Mr. Justice Muhammad Shafi Siddiqui
Mr. Justice Miangul Hassan Aurangzeb

Civil Appeal No. 140-P of 2018

AND

Civil Petition No.444-P of 2018

*[Against judgment dated 08.05.2018 of the
Peshawar High Court, Mingora Bench (Dar-
ul-Qaza), Swat passed in C.R.P.No.464-
P/2011]*

*Sher Said and others.
[in both cases]*

... *Appellants/Petitioners*

Versus

*Umar Akhtar and others.
[in both cases]*

... *Respondents*

For the Petitioners:
[in both cases]

Mr. Shah Faisal Nasapi, ASC.

Respondents No.1:
[in both cases]

Mr. Altaf Ahmad, ASC.

For other Respondents:

Nemo.

Date of Hearing:

10.06.2026.

JUDGMENT

Muhammad Shafi Siddiqui, J. Since both matters arise out of the common judgment dated 08.05.2018 passed by the learned Peshawar High Court, Mingora Bench (Dar-ul-Qaza), Swat in Civil Revisions No.464-P and 131-P of 2011 and involve common questions of law and facts, they are being disposed of through this single judgment.

2. The dispute in both cases concerns the land measuring 2 *kanals* and 4 *marlas* situated in *khasra* No.3728 at Moza Kalpani, District Buner.

However, the facts of both the appeal and petition for leave to appeal are stated as under, chronologically.

Civil Appeal No.140-P of 2018: The respondent No.1 (Umar Akhtar) instituted Suit No.353/1 of 2005, seeking ejectment of Sher Said and others from the suit property comprising house constructed on land measuring 1 *kanal* 2 *marlas* and Ghair momkin Danda measuring 1 *kanal* 2 *marlas*, situated in *khasra* No.3728 at Moza Kalpani, District Buner, and recovery of rent, due since last three years since institution of suit.

Civil Petition No. 444-P of 2018: Petitioners (Sher Said and others) instituted Suit No.351/1 of 2005, seeking declaration of ownership of land measuring 2 *kanals* and 4 *marlas* situated in *khasra* No.3728 at Moza Kalpani, District Buner, allegedly exchanged by their predecessor in interest, namely, Said *vide* an exchange deed dated 25.03.1980 and purchased by petitioners *vide* an *iqrar nama* dated 02.11.1985. They contended that they constructed house on it, and made improvements in it. Alongwith declaration, they sought correction of revenue entries and compensation for improvements allegedly made upon the property.

3. The suits were consolidated and decided together. After remand by the Appellate Court, the learned Trial Court dismissed the declaratory claim of Sher Said and others, decreed Umar Akhtar's ejectment suit, but awarded Rs.10,00,000/- as compensation for improvements. The Appellate Court maintained the decree of the Trial Court. Cross revisions were filed before the High Court. By the impugned judgment, the High Court allowed Civil Revision No.464-P of 2011 filed by Umar Akhtar, set aside the award of compensation, dismissed Civil Revision No.131-P of 2011 filed by Sher Said

and others, and maintained the decree for ejectment, hence these proceedings before this Court.

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4. We have heard the learned counsel for the parties and perused the material available on record. The following questions arise for determination:

(i) Whether the petitioners established title through the exchange deed dated 25.03.1980 and Iqrar Nama dated 02.11.1985?

(ii) Whether Article 100 of the Qanun-e-Shahadat Order, 1984 assists the petitioners?

(iii) Whether the petitioners are entitled to protection under Sections 41 and 53-A of the Transfer of Property Act?

(iv) Whether compensation for improvements was rightly denied by the High Court?

5. The entire claim of Sher Said and others rests upon the exchange deed and Iqrar Nama. The High Court found that Umar Akhtar was a minor at the time of both transactions. The record supports this conclusion. The alleged documents do not disclose its execution through a lawful guardian nor compliance with the principles governing transfer of a minor's property. Section 11 of the Contract Act, 1872, renders a minor incompetent to contract. A transaction entered into directly with a minor is *void ab initio* and incapable of conferring enforceable rights. Even otherwise, the documents were not proved in accordance with law. Material attesting witnesses and scribes were not produced. The mandatory requirements regarding proof of attested documents were not satisfied. The Courts below therefore rightly declined to recognize the alleged transfer.

6. The argument that the documents were more than thirty years old and therefore entitled to presumption under Article 100 of the Qanun-e-Shahadat, 1984 is misconceived. The presumption under Article 100 is

merely evidentiary and rebuttable. It cannot validate a transaction that is void under substantive law. Nor can it cure the incapacity of a minor or dispense with proof where execution is specifically disputed. A presumption regarding execution cannot transform an invalid transaction into a valid one.

7. The petitioners have also invoked sections 41 and 53-A of the Transfer of Property Act. Neither provision is attracted. Section 41 requires proof that the transferor was an ostensible owner and/or acting with the consent of the true owner. No such evidence exists on record. Likewise, section 53-A presupposes a valid and enforceable contract. Since the alleged transaction itself has not been proved and was legally incapable of enforcement, no protection can be claimed thereunder.

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8. The principal controversy in this appeal concerns compensation for improvements. The Local Commissioner's report merely notes the existence of structures. It does not establish who raised them, when they were raised, or whether they were constructed with the consent of the owner. The burden to establish these facts rested upon Sher Said and others. More importantly, a person who voluntarily raises construction or effects improvements upon another's property without the consent of the owner does so at his own risk. Such unauthorized improvements neither confer title nor create a legal entitlement to compensation. The law protects ownership and possession; it does not permit an unauthorized occupant to impose financial liability upon the true owner by making unilateral alterations to the property. The law is well settled that a person occupying another's property as a tenant or under permissive possession cannot claim compensation for improvements or constructions raised without the consent of the owner. Any such expenditure

is incurred at his own risk and does not create a proprietary, equitable, or compensatory right in his favour. Reference may be made to the cases of *Jan Muhammad*¹ and *Dilawar Shah*², wherein this Court held that unilateral improvements made without the landlord's permission do not entitle the occupant to compensation. The High Court was therefore fully justified in setting aside the award of Rs.10,00,000/- granted by the courts below.

9. Under the circumstances, we are of the considered view that the findings and conclusion drawn by the learned High Court are unexceptionable and in accordance with law and cannot be interfered with. Therefore, Civil Appeal No.140-P of 2018 is dismissed. Civil Petition No.444-P of 2018 is also dismissed and leave to appeal is refused.

Chief Justice

Judge

Judge

Islamabad:
10.06.2026

Approved for Reporting
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¹ Jan Muhammad v. Mst. Zubaida Begum (1982 SCMR 367).

² Dilawar Shah v. Jannat Gul (PLD 2004 SC 59)